

24SMCV02759 24SMCV02759

County: los-angeles

Division: Civil Law and Motion

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This is an ex parte application to strike a lien filed by the City of Culver City. The underlying case involves the injury of a City employee due to a defective piece of equipment. The manufacturer, Toter, was sued for the injury. Allegedly, during discovery, the parties learned that the City was also potentially partially responsible. Plaintiff says that this changed the nature of its case because Toter now had another potentially responsible party, thereby reducing its liability. Plaintiff says that the settlement reflects that reality. Plaintiff and Toter have settled, and Toter has issued a check. However, the City has filed a lien. Plaintiff was injured while on the job, and accordingly sought workers' compensation. The City seeks a lien on the settlement proceeds on the theory that to the extent it pays out on the workers' compensation, it is entitled to all or some of the money Toter has paid for the same injury. Recall that there is a lack of symmetry here. Toter might be able to reduce its liability to the extent plaintiff's injury is caused by the City, but the City cannot do the same because workers' compensation is strict liability. Thus, the City's remedy if (hypothetically) it paid out 100% of plaintiff's injury to plaintiff in the workers' compensation action, is to seek a recovery from Toter. Here, it is apparently seeking to do that through the lien.

Plaintiff complains that the City has not specified an amount for the lien, nor has it attempted to describe how the unspecified

amount was derived. Accordingly, the lien is for an indeterminate amount and stops the parties from negotiating Toter's check. That, plaintiff claims, is a problem and is unfair.

The court does not believe that this is appropriate for ex parte resolution. The court will, however, construe the application as an ex parte application to shorten time to hear the motion to strike or modify the lien, and will GRANT the OST. The court will take the original papers as plaintiff's moving papers and discuss with the City and plaintiff a schedule for an opposition, a reply, and a hearing date. The court's initial thoughts are that the City does need to specify an amount—it is not proper to have a lien in a secret amount. And it ought to be able or willing to set forth how the amount was derived. It might be that the amount of the lien is held by plaintiff's counsel by way of an agreement between plaintiff and the City pending resolution of the merits of the lien, but the remainder can be released to plaintiff.